

# HOUSE . . . . . No. 4559

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## The Commonwealth of Massachusetts

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HOUSE OF REPRESENTATIVES, October 2, 2025.

The committee on Aging and Independence, to whom was referred the petition (accompanied by bill, House, No. 792) of Thomas M. Stanley and Patricia D. Jehlen for an investigation by a special commission (including members of the General Court) relative to a statewide long-term services and supports benefit program, reports recommending that the accompanying bill (House, No. 4559) ought to pass.

For the committee,

THOMAS M. STANLEY.

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## The Commonwealth of Massachusetts

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In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
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An Act establishing a special commission on a statewide long-term services and supports benefit program.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. There shall be a special commission to study and make recommendations  
2 to establish a statewide long-term services and supports benefit program in the commonwealth.  
3 The commission shall study and report on: (i) whether and how a long-term serves and supports  
4 benefit program could be included as a benefit in the state disability insurance program structure;  
5 (ii) allowances for enrollment in the program of working adults who would make premium  
6 contributions either directly or through payroll deductions through their employer; (iii) requiring  
7 a mandatory enrollment with a voluntary opt-out option; (iv) giving adults the opportunity to  
8 plan for future long-term services and supports needs by providing a basic insurance benefit to  
9 those who meet requirements and have developed functional or equivalent cognitive limitations;  
10 (v) helping individuals with functional or cognitive limitations remain in their communities by  
11 purchasing nonmedical services and supports, including but not limited to personal care,  
12 homemaker, meal delivery and case management services; (vi) helping offset the costs incurred  
13 by adults with chronic and disabling conditions both for a defined period or until death.

SECTION 2 . The commission shall consist of the following 27 members: the secretary of health and human services or their designee, who shall serve as chair; the secretary of aging and independence or their designee; the commissioner of insurance or their designee; the assistant secretary for MassHealth or their designee; the chairs of the joint committee on aging and independence or their designees; the chairs of the joint committee on financial services or their designees; and 19 persons to be appointed by the governor: 1 of whom shall be a representative of the Home Care Aide Council, 1 of whom shall be a representative of the Home Care Alliance of Massachusetts, Inc., 1 of whom shall be a representative of Massachusetts Aging Access Association, Inc., 1 of whom shall be a representative of the Massachusetts Senior Care Association, Inc., 1 of whom shall be a representative of LeadingAge Massachusetts, Inc., 1 of whom shall be a representative of the Massachusetts Assisted Living Association, Inc., 1 of whom shall be a representative of AARP Massachusetts, 1 of whom shall be a representative of Local 1199 Service Employee International Union, 1 of whom shall be a representative of the Massachusetts Academy of Elder Law Attorneys, 1 of whom shall be a representative of Massachusetts Senior Action Council, Inc , 1 of whom shall be a representative of Blue Cross Blue Shield of Massachusetts Foundation, Inc., 1 of whom shall be a representative of the National Association of Insurance and Financial Advisors of Massachusetts, 1 of whom shall be a representative of Life Insurance Association of Massachusetts, Inc ,, 1 of whom shall be a representative of the Massachusetts Business Roundtable, Inc , 1 of whom shall be a representative of a long-term care insurance provider; 1 of whom shall be an actuary with experience in long-term care insurance, 1 of whom shall be an expert on long-term care and aging policy, and 1 of whom shall be an intergenerational advocate .

SECTION 3 . The commission shall review the independent actuarial study of financial options for modeling public, private and public-private hybrid long-term care services and supports authorized in item 4000-0300 of Chapter 18 of the Acts of 2024 and conducted by Milliman, Inc.; and provided further shall utilize the findings of said actuarial study to make recommendations on the following: (i) how a statewide long-term services and supports benefit program could be designed and implemented to expand the options for people who are interested in insuring themselves against the risk of costs associated with functional or cognitive disability, and require long-term services and supports; (ii) options for the design of the program, including eligibility, enrollment, benefits, financing, administration, and alignment with the MassHealth program and other publicly funded resources, including but not limited to the home care program established in Section 4 of Chapter 19A; provided, however, that the commission shall recommend a program that ensures, to the furthest extent possible, adequate funding for publicly funded programs (iii) how benefits under the program would be coordinated with existing private health care coverage benefits; (iv) the demands on the long-term care workforce as the need for long-term services and supports in Massachusetts grows, and how the long-term care workforce can be prepared to meet those demands; (v) the viability of a joint public and private system to make long-term services and supports accessible to as many individuals within Massachusetts as possible.

SECTION 4. The commission shall submit a report containing its findings and recommendations, including drafts of proposed legislation to carry out its recommendations, by filing the same with the clerks of the senate and house of representatives, the house and senate committees on ways and means, the joint committee on aging and independence and the joint committee on financial services no later than two years after the effective date of this act.